Republika ng Pilipinas
KAGAWARAN NG KATARUNGAN
Department of Justice
Manila

PRESS RELEASE
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DOJ ISSUES ADVISORY ON PLAGIARISM

The Department of Justice ("DOJ") issued Advisory Opinion No. 02, Series of 2012 explaining the meaning of plagiarism in the context of Philippine law and cases.

Consistent with the proactive stand of the DOJ, the Advisory Opinion addresses a recurring issue in the criminal justice system and lays out the scope of protection of authors under the country's intellectual property laws and sets out the liabilities for infringers.

"Plagiarism is a concept more understood in academic circles as an offense against academic integrity anathema to the strict standards of originality of scholarly works which members of the academic community subscribe to. However, recent events brought to fore the importance of knowing exactly what plagiarism is and to clarify the misconception that there is no crime of plagiarism under our laws," said Secretary of Justice Leila M. de Lima.

As the Advisory Opinion points out, plagiarism, which the Supreme Court has described as the "deliberate and knowing presentation of another person's original ideas or creative expressions as one's own", if committed under certain circumstances, can amount to criminal violation of the Intellectual Property Code, the E-Commerce Act or the Cybercrime Prevention Act.

The Advisory provides guidance on how to avoid, prevent and resolve plagiarism as it is recognized as an undesirable act that breaches the standards of propriety by depriving another person of the fruits of creativity.

The highlights are as follows:

1. Plagiarism should be avoided, regardless of the presence of

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sanctions against it.

2. Cultivate the habit of attribution. When in doubt, cite.
3. Everyone can be a victim of plagiarism.
4. Always be vigilant in detecting cases of plagiarism.
5. Encourage institutions to adopt anti-plagiarism measures.

With this Advisory Opinion, the DOJ hopes to continue to build community awareness and increase social trust for a peaceful and just Republic.

Enclosed: Advisory Opinion No. 02 (Series of 2012)

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ADVISORY OPINION NO. 02 (Series of 2012)
18 September 2012

ADVISORY ON PLAGIARISM

1. INTRODUCTION

This Advisory seeks to clarify the concept of plagiarism in the Philippine legal context and guide concerned parties on the legal implications of such an act.

Up until recently, the concept of plagiarism has only gained currency primarily in the academic field, where standards for original scholarly work leading to an undergraduate or graduate degree are strictly enforced. However, various events have sparked spirited debates on the nature and extent of plagiarism outside the academe, arising from cases of alleged plagiaristic acts committed by high-ranking public officials.

In the case of *In re: Charges of Plagiarism, etc. against Associate Justice Mariano C. Del Castillo,* A.M. No. 10-7-17-SC, 12 October 2010, the Supreme Court cited the lexical definition of plagiarism as ordinarily understood:

> At its most basic, plagiarism means the theft of another person's language, thoughts, or ideas. To plagiarize, as it is commonly understood according to Webster, is "to take (ideas, writings, etc.) from (another) and pass them off as one's own." The passing off of the work of another as one's own is thus an indispensable element of plagiarism.

Plagiarism thus refers to the act of appropriating the ideas of another and presenting them as one's own. It is an act of intellectual dishonesty, which assumes more gravity when committed in the context of an activity that puts premium precisely on the production of original creative work (*e.g.*, an academic paper, a literary or scientific publication, an artistic work, etc.).

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However, in the case cited above, the Supreme Court prescribed a standard of plagiarism which requires an element of deliberate intent, based on the definition of plagiarism provided in an oft-cited legal reference material:

> Indeed, the 8th edition of Black's Law Dictionary defines plagiarism as the "deliberate and knowing presentation of another person's original ideas or creative expressions as one's own." Thus, plagiarism presupposes intent and a deliberate, conscious effort to steal another's work and pass it off as one's own.

Therefore, plagiarism, at its core, is a breach of standards of honesty, integrity and justice. It undermines the common expectation that credit should be given where it is due, and that one should not appropriate the fruits of another's labor without securing due consent or giving due acknowledgement. However, as the Supreme Court has ruled in the *Del Castillo* case, an act of plagiarism presupposes deliberate intent. If negligence, or good faith/honest mistake can be established, there can be no finding of plagiarism.

In any case, even as the Supreme Court has prescribed a higher evidentiary threshold for proving the existence of plagiarism, it still remains a fact that plagiarism is an actionable wrongdoing and can even, in some instances, amount to a crime punishable by imprisonment and fine. While plagiarism *per se* is not a crime, it would be inaccurate and misleading to say that "plagiarism is not a crime" in the Philippines, and is a mere transgression of ethical and moral standards, because the law actually provides penalties for it.

2. SUMMARY OF THE LAW

A. Plagiarism under the Intellectual Property Code

The act of plagiarizing the works of another bears the closest affinity to the act of copyright infringement, although, as will be explained below, the two are not synonymous.

Under Section 172.2 of Republic Act No. 8293, otherwise known as the Intellectual Property Code ("IPC"), literary and artistic works "are protected by the sole fact of their creation, irrespective of their mode or form of expression, as well as of their content, quality and purpose". Such works refer to intellectual creations in the literary and artistic domains which include all forms of creative expression – writings,

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musical and dramatic compositions, drawings and illustrations, plans and sketches, pictures, computer programs and, in general, all other "literary, scholarly, scientific and artistic works" [Section 172.1, IPC] including works derived from them [Section 173, IPC].

As to "derivative works" under Section 173 of the IPC, the law protects as "new works" any of the following:

> (a) Dramatizations, translations, adaptations, abridgments, arrangements, and other alterations of literary or artistic works; and
>
> (b) Collections of literary, scholarly or artistic works, and compilations of data and other materials which are original by reason of the selection or coordination or arrangement of their contents.

Thus, the protection accorded by intellectual property laws extends to works which have been derived from other works, without prejudice to the latter's subsisting copyright. This means that if an author creates a work by adapting, abridging, or translating a previous work, or by selecting, coordinating or arranging previously-gathered data, the said author is deemed by law as an original author, and his/her "derived" or "transformed" work will be protected by law as an original creation. **The fact that an author anchors his/her work on the work of another does not mean that the laws will provide him/her less protection. Transforming pre-existing works in a meaningful manner requires the same level of originality, creativity and critical thought which the IP Code equally recognizes as worthy of copyright protection.**

Thus, under the intellectual property regime in the country, the general rule is that any literary, scholarly, scientific or artistic work, expressed in whatever form, enjoys the protection of the law from the moment of its creation. The author of an original work enjoys "copyright or economic rights" which, under Section 177 of the IPC, include, among others, the right to carry out, prevent, or authorize the reproduction, transformation, public distribution, rental, public display, public performance or other public communication of the work. Simply put, an original work is the property of its author, and it can no longer be publicly "recycled" without that author's permission.

In fact, the protection accorded by the law to the author of an original work is so extensive that, even if the said author authorizes its redistribution through assignment or licensing contracts, he/she still retains "moral rights" over the work. "Moral rights", under Section 193 of

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the IPC, include, among others, the right to be acknowledged as the author of a work whenever it is publicly used, and the right to object to any distortion, modification or derogatory action in relation to the author's work, which would prejudice his/her honor or reputation.

In sum, the law respects and values the fact of authorship of original works. Plagiarism undermines the protection accorded by intellectual property laws to authors because its effect is the unauthorized appropriation of an original idea and its subsequent presentation as the plagiarist's own. However, **plagiarism *per se*** is not punishable as a crime under the IPC unless it also amounts to **copyright infringement**. The two acts are distinct because, among others:

1. Copyright has a limited term of protection, *i.e.*, during the life of the author and for fifty (50) years after his/her death. After this term, the original work is deemed to have entered the "public domain" and can already be freely used by anyone. There is no such term limitation for plagiarism.

   A helpful example can be derived from the illustration drawn by Professor Michael Rawson for the members of the American Historical Association[1]:

   > If a person, for example, **republishes a volume of George Bancroft's nineteenth-century classic *History of the United States of America* and claims to be the author, he or she commits plagiarism but not copyright infringement, since the copyright expired many years ago**. The individual would suffer the condemnation of the historical profession, and may have committed fraud, but would not have broken any copyright laws. If a person, however, **incorporates an entire chapter of a more recent historical work into a new book without the permission of the copyright holder, the person is not guilty of plagiarism if he or she cites the source. But the person does infringe on the original author's copyright**, whether or not the wronged author is properly credited. [Emphasis supplied]

   Thus, even if plagiarism is committed, there is no copyright infringement if the copyright of the work has already expired and there is no longer any legal ground to enforce the copyright

[1] Michael Rawson, PLAGIARISM: CURRICULAR MATERIALS FOR HISTORY INSTRUCTORS, available URL: <http://www.historians.org/governance/pd/curriculum/plagiarism_defining.htm> (last accessed 18 September 2012).

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of the original author. Conversely, even if there is no plagiarism because there was no undue claim of authorship, copyright infringement will still be committed if the work was reproduced without the authority of the copyright holder.

2. Plagiarism *per se* refers merely to the passing off of another person's work as one's own. Whenever this misrepresentation is committed, plagiarism has already been committed as well. The IPC, on the other hand, provides for various exempting circumstances that would absolve any person from a charge of copyright infringement. Among others, the limitations to copyright protection under the IPC are:

    a. An "idea, procedure, system, method or operation, concept, principle, discovery or mere data as such" is not protected by copyright. For example, in the case of *Joaquin v. Drilon*, G.R. No. 108946, 28 January 1999, the Supreme Court has ruled that the *mere format and concept* of a dating game show is not copyrightable. Thus, if another person decides to produce another dating game show, he/she cannot be held liable for copyright infringement. However, if *the show itself* was reproduced and broadcast without the broadcaster's permission, copyright infringement will have been committed.

    b. News of the day and other miscellaneous facts having the character of mere items of press information, as well as any official legislative, administrative or legal text, are not copyrightable.

    c. Any work of the Government of the Philippines (*e.g.*, laws, rules, speeches, lectures, addresses, etc.) is not protected by copyright, but the consent of the concerned government agency shall be secured if a person wishes to use such work for profit.

    d. Use of materials in a manner consistent with Section 184 and the "fair use" doctrine in Section 185 of the IPC absolves a person from a copyright infringement claim. Basically, the exemptions provided in these provisions refer to use of materials in a manner that does not undermine the interests of the author, *e.g.*, use for not-for-profit or educational purposes or for mere private

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consumption. The over-arching rule is that, whenever applicable, the author and the work are given proper attribution and acknowledgement.

In sum, plagiarism does not in itself result in a criminal violation, unless it also constitutes copyright infringement under the IPC. There is infringement when any of the copyright or economic rights under Section 177 of the IPC is violated by another person, or when any of the acts in Section 217.3 are committed, and the said violation or act cannot be subsumed under any of the limitations or exemptions provided under the same law.

If plagiarism amounts to copyright infringement, the imposable penalty is one to three years of imprisonment and a fine of 50,000 to 150,000 pesos for the first offense, three years and one day to six years of imprisonment and a fine of 150,000 to 500,000 pesos for the second offense, and six years and one day to nine years of imprisonment and a fine of 500,000 to 1,500,000 pesos for the third and subsequent offenses.

B. Plagiarism under the E-Commerce Act

If plagiarism is committed in the form of "online piracy" by using the internet or other telecommunications networks, and the same act constitutes copyright infringement as discussed in the preceding section, the person committing it may also be held criminally liable under Republic Act No. 8792 (otherwise known as the Electronic Commerce Act or "E-Commerce Act"). Under Section 33 (b) of the law:

> Piracy or the unauthorized copying, reproduction, dissemination, distribution, importation, use, removal, alteration, substitution, modification, storage, uploading, downloading, communication, making available to the public, or broadcasting of protected material, electronic signature or copyrighted works including legally protected sound recordings or phonograms or information material on protected works, through the use of telecommunication networks, such as, but not limited to, the internet, in a manner that infringes intellectual property rights shall be punished by a minimum fine of One hundred thousand pesos (P100,000.00) and a maximum commensurate to the damage incurred and a mandatory imprisonment of six (6) months to three (3) years

The E-Commerce Act aims to preserve the integrity of channels of information and communications in the country in order to facilitate lawful commerce and other economic activities. Thus, it penalizes acts

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that use information and communications technology ("ICT") networks to commit criminal and other illicit activities. The provision quoted above, Section 33 (b) of the law, focuses on copyright infringement committed online. Thus, in the context of plagiarism, if a person uses the internet to appropriate the intellectual creation of another without attribution (*i.e.*, in the form of "online piracy"), and such appropriation amounts to copyright infringement under the IPC, he/she will likewise be liable under the E-Commerce Act.

C. Plagiarism under the Cybercrime Prevention Act

Signed into law on 12 September 2012 by President Benigno S. Aquino III, Republic Act No. 10175 (otherwise known as the "Cybercrime Prevention Act" of 2012) seeks to keep ICT networks and facilities free of criminal activities. While the primary focus of the Cybercrime Prevention Act is the definition and punishment of specific "cybercrimes" such as cyber-attacks, online fraud, cybersex and child pornography, it also provides for a general criminal liability for all other violations of the Revised Penal Code and other special penal laws when committed through information and communications technologies. Section 6 of the law provides:

> All crimes defined and penalized by the Revised Penal Code, as amended, and special laws, if committed by, through and with the use of information and communications technologies shall be covered by the relevant provisions of this Act: Provided, That the penalty to be imposed shall be one (1) degree higher than that provided for by the Revised Penal Code, as amended, and special laws, as the case may be.

Therefore, pursuant to the aforequoted provision, if an act of plagiarism amounts to a copyright infringement under the IPC, a special law, then the violator may likewise be held liable under the Cybercrime Prevention Act if he/she uses ICT for its commission.

Summarizing the law, **plagiarism is punishable as a crime** if it was committed **with deliberate intent** and **amounts to copyright infringement** under the IPC. If copyright infringement was committed, the violator can be held liable under the IPC; in addition, he/she can also be held liable under (1) the **Cybercrime Prevention Act**, if the plagiarism was committed through an ICT network or facility like the internet, and/or (2) the **E-Commerce Act**, if the plagiarism takes the form of "online piracy" as described in Section 33 (b) of the law.

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III. ADVISORY

Given the above, the following advisory points are issued:

1. PLAGIARISM SHOULD BE AVOIDED, REGARDLESS OF THE PRESENCE OF SANCTIONS AGAINST IT.

Plagiarism is, at its core, theft of the intellectual property of another. It is a specie of dishonesty, fraud and lack of integrity. While, under the law, plagiarism *per se* does not automatically constitute a crime, it is consistent with moral and ethical standards for every person to refrain from consciously committing it. The presence or absence of sanctions against it should not be the determining factor for one's conduct. We must all strive to achieve the highest standards of public discourse by ensuring that the ideas we express are products of our own thought, and not merely copied from unwitting authors.

2. CULTIVATE THE HABIT OF ATTRIBUTION. WHEN IN DOUBT, CITE.

While there is only a specific class of acts which amount to criminally punishable violations of the IPC, the E-Commerce Act or the Cybercrime Prevention Act, plagiarism should still be strongly discouraged in all its forms and regardless of sanctions.

With the proliferation of readily-available and accessible information via the internet and other ICT media, it has become very easy to retrieve the same for whatever use or purpose. Without cultivating the habit of attributing sources and original works, persons who routinely access data for their everyday use will not develop the discipline of differentiating between their own work and those of another, and at some point will be called out for plagiarism.

Being conscious of properly citing sources, once developed into a habit, is the best protection against charges of plagiarism. Whenever there is doubt that a particular piece of information is already "public knowledge" and requires no attribution, take a cautionary stance and cite. Whenever there is doubt that the use of a material measures up to the standards of "fair use" under the IPC, take the cautionary stance and cite. When in doubt, cite. Unnecessary or superfluous citation is always better than no citation at all.

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3. EVERYONE CAN BE A VICTIM OF PLAGIARISM.

The generation of original ideas and their expression in whatever form is the hallmark of intellectual development. While plagiarism is mostly committed in an academic setting (especially in the context of violating prescribed citation and style rules), it does not mean that intellectual works exhibited elsewhere enjoy less protection. Thus, everyone can be a victim of plagiarism, for as long as original ideas are committed to a form readily available to the public.

The value attached to the originality of ideas is not diminished by the fact that such ideas are expressed in blogs and other less formal social media platforms. A person deliberately appropriating them without proper attribution will still be committing plagiarism, regardless of the presence or absence of sanctions.

4. ALWAYS BE VIGILANT IN DETECTING CASES OF PLAGIARISM.

In an era of internet-based "cut-and-paste" research and writing, it is very easy to commit plagiarism with impunity. However, if vigilance is observed in detecting cases of plagiarism, violators would be held to account and rectify their errors. The vigilance of the public will also create a powerful deterrent effect against potential acts of plagiarism in the future and apply strong pressure on all writers and researchers in the public sphere to adhere to standards of intellectual honesty and integrity.

Teachers and professors have long acquired the skill of detecting plagiarism among their students through several "tell-tale" signs like inconsistent word usage, shifting tones, and unusually sophisticated language in certain passages that stand out vis-a-vis the rest of the text. These same techniques can be used to detect plagiarism in other settings.

5. ENCOURAGE INSTITUTIONS TO ADOPT ANTI-PLAGIARISM MEASURES.

The value of intellectual honesty and integrity should not be a purely academic concern. Other institutions like private corporations, government offices, societies and associations should be encouraged to adopt anti-plagiarism measures. Even if not strictly a crime, plagiarism should still be viewed as a pernicious act that reflects adversely on the character of a person, if done deliberately.

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Thus, institutions should consider specifically designating plagiarism as a just cause for disciplinary sanctions. This should apply specifically to institutions whose works and activities are imbued with public interest or are highly fiduciary in nature, and those whose *raison d'etre* is precisely the generation of original ideas.

Plagiarism should not be tolerated and encouraged in a society which values honesty, diligence and integrity. It should be treated as reprehensible conduct and should not be allowed to proliferate simply because no law specifically punishes it as a crime *per se*. Attributing sources and acknowledging the progeny of original ideas are consistent with the standards of morals, ethics and justice that everyone should subscribe to.

This Advisory is issued by the DOJ in line with its thrust to take a proactive stance and a dynamic approach in criminal justice concerns. All are enjoined to disseminate and faithfully observe this Advisory.

LEILA M. DE LIMA
Secretary

Department of Justice
CN : O201210049

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